

See the explanation of the above question.

4. **The 42<sup>nd</sup> Amendment Act (1976) has incorporated into the Constitution of India a new chapter on –**

- (a) Administration of Union Territories
- (b) Formation of Inter-State Councils
- (c) Fundamental Duties
- (d) None of these

**44<sup>th</sup> B.P.S.C. (Pre) 2000**

**Ans. (c)**

See the explanation of the above question.

5. **Which one of the following is a Fundamental Duty in India?**

- (a) Separation of judiciary from executive
- (b) To value and preserve the rich heritage of our composite culture
- (c) Free and compulsory education
- (d) Abolition of Untouchability

**45<sup>th</sup> B.P.S.C. (Pre) 2001**

**Ans. (b)**

To value and preserve the rich heritage of our composite culture is a fundamental duty mentioned under Article 51A(f).

6. **Which of the following is the Fundamental Duty under the Constitution of India?**

- (a) To uphold the unity and integrity of India
- (b) To protect the natural environment
- (c) To provide educational opportunities to own child
- (d) More than one of the above
- (e) None of the above

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**Ans. (d)**

The Fundamental duties were added to the Constitution by 42nd Amendment in the year 1976. Initially the Fundamental Duties were ten in number which were subsequently increased to eleven by the 86th Amendment in 2002. The Fundamental Duties are enshrined in Article 51-A. All the three option (a), (b), (c) are included under it.

## The President

1. **In India, the President is elected by:**

- (a) Direct Election
- (b) Single Transferable Vote System
- (c) Proportional Vote System

(d) Open Ballot System

**41<sup>st</sup> B.P.S.C. (Pre) 1996**

**Ans. (b & c)**

The President of India is elected by the system of proportional representation by means of the single transferable vote and the voting at such election shall be done by secret ballot. This is an indirect method of election. Article 54 describes the method of election of the President.

It says that-

President shall be elected by the members of an electoral college consisting of

- (a) all the elected members of both Houses of Parliament (R.S. + L.S. )
- (b) all the elected members of the Legislative Assemblies of the States.

Here "State" involves National Capital Territory of Delhi and Union Territory of Puducherry as provided by 70<sup>th</sup> Amendment Act, 1992.

Pay Attention :- Jammu & Kashmir is not included as of now.

**Note :** The elected members of the Legislative Assembly of the Union Territory of Jammu and Kashmir are not yet included in the President's electoral college.

2. **Electoral College for the election of the President of India consists of -**

- (a) All the elected members of the Rajya Sabha.
- (b) All the elected members of the Lok Sabha.
- (c) All the members of the State Legislative Assemblies.
- (d) All the elected members of both the Houses of Parliament and elected members of the State Legislative Assemblies.
- (e) None of the above / More than one of the above

**66<sup>th</sup> B.P.S.C. (Pre) (Re- Exam), 2020**

**Ans. (d)**

See the explanation of the above question.

3. **If there is any dispute regarding the Presidential election, it can be referred to –**

- (a) Attorney General of India
- (b) Parliament
- (c) Supreme Court of India
- (d) None of these

**38<sup>th</sup> B.P.S.C. (Pre) 1992**

**Ans. (c)**

If there is any doubt or dispute regarding the election of the President, it can be referred to the Supreme Court of India (Article 71), whose decision will be final.

4. The President of India can be removed from his post by –

- (a) The Prime Minister of India
- (b) Lok Sabha
- (c) Chief Justice of India
- (d) Parliament

39<sup>th</sup> B.P.S.C. (Pre) 1994

47<sup>th</sup> B.P.S.C. (Pre) 2005

Ans. (d)

According to Article 56(1)(b), the President can be removed from his/her office by impeachment for the violation of the Constitution and the process of impeachment can be started by either Houses of the Parliament in accordance with provisions of Article 61.

5. If the position of President and Vice-President are vacant, who officiates as the President of India?

- (a) The Prime Minister
- (b) The Chief Justice of India
- (c) The Speaker of Lok-Sabha
- (d) None of these

48<sup>th</sup> to 52<sup>nd</sup> B.P.S.C. (Pre) 2008

Ans. (b)

The President (Discharge of Functions) Act, 1969 of India provides that the Chief Justice of India (CJI) shall act as the President of India in the event of the office of both the President and Vice – President being vacant. In the absence of CJI, the senior most Judge of Supreme Court shall perform the functions of the President.

6. The Indian President is eligible for re-election for how many times?

- (a) Once
- (b) Twice
- (c) Thrice
- (d) Any number of times
- (e) None of the above/More than one of the above

67<sup>th</sup> B.P.S.C. (Re-Exam) (Pre)-2021

Ans. (d)

Article 57 of the constitution of India deals with the eligibility conditions for the re-election of the President, according to that any person, who holds, or has held office as President shall, subject to the other provisions of this Constitution be eligible for re-election to that office. Thus, the President of India is eligible for re-election any number of times.

7. Who is the Executive Head of State in India?

- (a) President
- (b) Prime Minister
- (c) Leader of the Opposition

- (d) Chief Secretary, Government of India

44<sup>th</sup> B.P.S.C. (Pre) 2000

Ans. (a)

According to Article 53 (1), the executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with the Constitution.

8. Who of the following has been vested with the executive powers of the central government under the constitution of India?

- (a) President of India
- (b) Prime Minister of India
- (c) Central Cabinet
- (d) All the above

42<sup>nd</sup> B.P.S.C. (Pre) 1997

Ans. (a)

See the explanation of the above question.

9. President of India exercises his powers –

- (a) Either directly or through officers subordinate to him
- (b) Through Ministers
- (c) Through Prime Minister
- (d) Through Cabinet
- (e) None of the above/More than one of the above

60<sup>th</sup> to 62<sup>nd</sup> B.P.S.C. (Pre) 2016

Ans. (a)

Article 52 of the Indian Constitution provides that there shall be a President of India. According to Article 53(1) "the executive power of the Union shall be vested in the President and shall be exercised by him either's directly or through officers subordinate to him in accordance with this Constitution".

10. The President:

- (a) Is not a part of the Parliament
- (b) Is a part of the Parliament
- (c) Is a part of the Parliament and sits in the Parliament
- (d) Can vote in the Parliament
- (e) None of the above/More than one of the above

64<sup>th</sup> B.P.S.C. (Pre) 2018

Ans. (b)

Under the Constitution, the Parliament of India consists of three parts viz, the President, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha). Though the President of India is not a member of either House of Parliament and does not sit in the Parliament to attend its meetings, he is an integral part of the Parliament.

**11. Indian Constitution doesn't empower the President of India with the right of:**

- (a) Appointment of Prime Minister
- (b) Appointment of Chief Minister in states
- (c) Being the Supreme Commander of Defence Forces
- (d) Executing emergency in any part of the country

**38<sup>th</sup> B.P.S.C. (Pre) 1992**

**Ans. (b)**

According to the Article 164(1), the Chief Minister is appointed by the Governor, not by the President of India.

**12. The President of India does not have the right to –**

- (a) Give pardon
- (b) Remove a judge of Supreme Court
- (c) Declare emergency
- (d) Pass ordinances

**41<sup>st</sup> B.P.S.C. (Pre) 1996**

**Ans. (b)**

The President of India does not have the right to remove a judge of the Supreme Court. The provision regarding this is discussed in the Article 124(4) of the Constitution which says "A Judge of the Supreme Court shall not be removed from his office except by an order of the President passed after an address by each House of the Parliament supported by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of the House present and voting has been presented to the President in the same session for such removal on the ground of proved misbehaviour or incapacity".

**13. The First President of Independent India hailed from-**

- (a) U.P.
- (b) Andhra Pradesh
- (c) Bihar
- (d) Tamil Nadu

**41<sup>st</sup> B.P.S.C. (Pre) 2001**

**Ans. (c)**

The First President of Independent India was Dr. Rajendra Prasad, who hailed from Bihar.

**14. The first President of India Rajendra Prasad belonged to which State?**

- (a) Bihar
- (b) Haryana
- (c) Delhi
- (d) Uttar Pradesh
- (e) None of the above / More than one of the above

**66<sup>th</sup> B.P.S.C. (Pre) (Re- Exam), 2020**

**Ans. (a)**

Dr. Rajendra Prasad was born in a remote village of Siwan district of Bihar on 3<sup>rd</sup> December, 1884.

**15. Who was among following to receive first Bharat Ratna ?**

- (a) Rajendra Prasad
- (b) Jawahar Lal Nehru
- (c) Lal Bahadur Shastri
- (d) S. Radhakrishnan
- (e) None of the above / More than one of the above

**66<sup>th</sup> B.P.S.C. (Pre) (Re-Exam), 2020**

**Ans. (d)**

'Bharat Ratna', the highest Civilian Award of the country, was instituted in the year 1954. Chakravarti Rajagopalachari, Dr. Sarvapalli Radha Krishnan and C.V. Raman were awarded Bharat Ratna in 1954. Thus, option (d) is the correct answer.

**16. Which of the following statements is not correct?**

- (a) To hold the office of President Candidate should have a minimum age of 35 years.
- (b) Vice-President is Chairman of Rajya Sabha
- (c) Vice-President is appointed by the President of India
- (d) First President of India was Dr. Rajendra Prasad.

**38<sup>th</sup> B.P.S.C. (Pre) 1992**

**Ans. (c)**

According to Article 66, the Vice-President is elected by the members of Parliament by the Proportional Representation System and Single Transferable Vote System. All the other three statements are true.

**17. What is the sequence number of Ms. Pratibha Patil as the President of the Republic of India?**

- (a) 10<sup>th</sup>
- (b) 11<sup>th</sup>
- (c) 12<sup>th</sup>
- (d) 13<sup>th</sup>

**48<sup>th</sup> to 52<sup>nd</sup> B.P.S.C. (Pre) 2008**

**Ans. (c)**

Pratibha Devi Singh Patil (25 July 2007 to 25 July 2012) took oath as the 12<sup>th</sup> President of India on 25 July 2007. She was the first women President of India. Currently, Draupadi Murmu is the President of India.

**18. A Bill presented in Parliament becomes an Act after –**

- (a) It is passed by both the Houses.
- (b) The President has given his Assent.
- (c) The Prime Minister has signed it.
- (d) The Supreme Court has declared it to be within the competence of the Union-Parliament.

**48<sup>th</sup> to 52<sup>nd</sup> B.P.S.C. (Pre) 2008**

**Ans. (b)**

A Bill presented and passed by the Parliament becomes an Act after the assent of the President.